**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, California 95204

**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

**SAN JOSE DIVISION**

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| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**UBER TECHNOLOGIES, INC., a Delaware corporation; TASKUS HOLDINGS, INC., a Delaware corporation; TASKUS USA, LLC, a Delaware limited liability company; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. _____<br><br>**COMPLAINT FOR DAMAGES**<br><br>(1) FCRA, 15 U.S.C. section 1681b(b)(2)(A);<br>(2) ICRAA, Civ. Code sections 1786.16, 1786.50;<br>(3) FCRA, 15 U.S.C. section 1681b(b)(3)(A);<br>(4) Penal Code section 290.46(j)(2)(E), (j)(4)(A);<br>(5) ICRAA, Civ. Code sections 1786.40, 1786.50<br><br>**DEMAND FOR JURY TRIAL** |

**Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:**

## I. NATURE OF THE ACTION

1. This action concerns an employment background-screening process for a written, accepted temporary-employment offer on the Uber AV Teammate campaign in San Jose, California -- including Defendants' procurement of a consumer report without the required standalone disclosures, and their post-report withholding of that accepted assignment after First

Advantage furnished California-registry-sourced information.

2. On September 14, 2026, TaskUs, LLC issued Plaintiff a written Offer of Temporary Employment for a Teammate position at $22.00 per hour, production hours 2PM-11PM, with an anticipated September 23, 2026 start and an assignment expected to run through on or around December 4, 2026. Plaintiff accepted the offer.

3. The WorkDay offer communication identified the assignment as **Uber AV Teammate (SJ: 09/23/2026)**, requisition **R_2608_10812**, candidate **C261051599**.

4. The onboarding documents used multiple TaskUs entities. The written offer named TaskUs, LLC. The United States Background Consent Form directed screening information to TaskUs USA, LLC. TaskUs Holdings, Inc. was the counterparty on other onboarding documents and was later identified by First Advantage as the employment-report recipient.

5. On September 14, 2026, First Advantage Background Services Corp. ("First Advantage") initiated employment screening through Profile Advantage, Order **WPS-361214148**.

6. The written offer itself stated that "[t]he Company will provide required standalone disclosures and obtain required authorizations before obtaining a consumer or investigative consumer report." The preserved onboarding packet includes a United States Background Consent Form. That form is a consent/release document authorizing release of screening information to TaskUs USA, LLC. It is not a standalone disclosure consisting solely of the disclosure required by 15 U.S.C. § 1681b(b)(2)(A), and it does not itself supply the pre-procurement content required by Civil Code § 1786.16. Plaintiff did not receive, before procurement, a separate compliant FCRA or ICRAA standalone disclosure.

7. At approximately 10:20 a.m. PDT on September 14, the Profile Advantage portal showed several screening components complete, while the felony-including-misdemeanor component and **PRINSOS**, First Advantage's national sex-offender component, remained In Progress.

8. At 11:24 a.m. on September 14, TaskUs Talent Acquisition Operations emailed Plaintiff that his scheduled start was being placed on a "standard administrative hold" while final onboarding reviews were completed, **including the processing of your background screening report.** The email stated that the application remained pending.

9. The September 14 hold is important context. Plaintiff does **not** allege that the hold itself was adverse action based on the completed California-registry result. The relevant registry component had not yet been furnished as a completed result.

10. On September 15, 2026, First Advantage issued a consumer disclosure stating that public-record information concerning Plaintiff was being reported to **TASKUS HOLDINGS INC USA**, Client Account **417722USA**.

11. The enclosed national sex offender registry component of Order WPS-361214148 states, verbatim:

SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY. SENTENCE: REGISTERED SEX OFFENDER

12. Plaintiff therefore alleges as known fact -- not on information and belief -- that First Advantage furnished employment-screening information expressly sourced to the California Sex Offender Registry. That information is information disclosed pursuant to Penal Code § 290.46.

13. First Advantage's September 15 cover letter stated that the reported results themselves do not constitute acceptance or rejection and that an employment decision would come from the requesting organization.

14. First Advantage separately administered a saliva drug-test product for TaskUs Holdings, Inc., Schedule ID **96558696**. The background report and saliva product were separately identified in the onboarding process.

15. On September 16, First Advantage sent an "Action Required" message stating that confirmation for the saliva schedule could not be successfully completed. That event occurred after the September 14 background-report hold and after the September 15 furnishing of the California-registry-sourced report.

16. Plaintiff does not conceal or collapse the saliva issue. Whether the later saliva event became an independent employment reason is a causation question distinct from whether Defendants procured the report lawfully and whether they actually used California-registry information for an employment decision.

17. After September 15, 2026, Defendants maintained the administrative hold, refused to restore the September 23 Uber AV Teammate start, did not issue a new start date, and did not issue a Fair Chance restoration or individualized assessment stating that California-registry information was disregarded. The anticipated September 23, 2026 start passed without Plaintiff being permitted to begin. The accepted assignment was withheld and effectively rescinded.

18. Before that post-report withholding, the persons taking and maintaining the adverse action did not provide Plaintiff both a copy of Order WPS-361214148 and the written Summary of Rights required by 15 U.S.C. § 1681b(b)(3)(A).

19. The California-registry-sourced component was a substantial factor in the post-report employment decision. The September 14 hold identified the background screening report as controlling release of the start; the report that then arrived expressly sourced the sex-offender component to the California Sex Offender Registry; and the start was never restored after that report was furnished.

20. Uber Technologies, Inc. is named because the only assignment offered was Uber's branded AV Teammate campaign and because -- on information and belief grounded in the campaign documents alleged below -- Uber set, specified, or approved the First Advantage search criteria / screening package used for that campaign, including the national sex-offender components that returned California-registry SOURCE OF RECORD information, and shared control over start authorization. Uber is not sued merely because its name appears on WorkDay.

21. First Advantage is the CRA that generated Order WPS-361214148. It is not named as a defendant in this Complaint. Plaintiff reserves all claims against First Advantage arising from its furnishing of California-registry-sourced employment reports.

## II. JURISDICTION AND VENUE

22. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 because Counts One and Three arise under the Fair Credit Reporting Act, 15 U.S.C. § 1681 et seq.

23. This Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over Counts Two, Four, and Five because they arise from the same onboarding, screening order, report, hold, and withheld start.

24. Plaintiff has Article III standing. He alleges concrete injuries from the privacy and

information-control interests protected by the employment-screening statutes and a concrete economic injury from the loss and withholding of the accepted Uber AV Teammate assignment at the documented $22.00 hourly rate (production hours 2PM-11PM) and the associated $1,000 retention-bonus opportunity. He sues as a prospective employee adversely affected by an employment decision within the meaning of 15 U.S.C. § 1681a(k)(1)(B)(ii).

25. Venue is proper in this District under 28 U.S.C. § 1391(b)(1) and (b)(2). A substantial part of the events giving rise to the claims occurred here: the offered assignment was **USA - San Jose - San Jose (Delivery)**; the WorkDay campaign was **Uber AV Teammate (SJ: 09/23/2026)**; orientation was scheduled at 1631 N 1st Street, Suite 200, San Jose; production was identified at 3030 Corvin Drive, Santa Clara; and the employment Defendants sought to place Plaintiff into Northern District operations. Uber is headquartered in San Francisco and resides in this District.

26. Intra-district assignment. Under Civil Local Rule 3-2(c) and (e), the action arises in Santa Clara County. The page-one court header states SAN JOSE DIVISION so the Clerk may assign the action accordingly. Plaintiff does not otherwise treat the division line as expanding or limiting the parties or claims.

## III. PARTIES

27. Plaintiff Brendan Ngwa Nforbi is a natural person and California resident. He is a person as to whom information is disclosed through California's Megan's Law internet website operated under Penal Code § 290.46.

28. Defendant TaskUs Holdings, Inc. ("TaskUs Holdings") is a Delaware corporation registered in California, Entity No. 3828721, with California registered agent C T Corporation System. First Advantage identified **TASKUS HOLDINGS INC USA**, Client Account Number

**417722USA**, at 1650 Independence Drive, Ste 100, New Braunfels, Texas -- the same street address on the offer letter -- as the recipient account for Order WPS-361214148. TaskUs Holdings is the named employer on the First Advantage saliva-drug-test order and the Adobe Sign / NDA counterparty on the onboarding packet.

29. Defendant TaskUs USA, LLC ("TaskUs USA") is an active Delaware limited liability company registered in California, Entity No. 201729810166. Plaintiff's September 14 United States Background Consent Form identifies TaskUs USA as a recipient of screening information.

30. The written Offer of Temporary Employment was issued in the name of TaskUs, LLC. California Secretary of State records reviewed on September 14 reflected TaskUs, LLC, Entity No. 200826810086, as Converted Out. Plaintiff does not name TaskUs, LLC as a captioned defendant and does not treat the former California entity or its last-listed agent as the service target. TaskUs, LLC's role is pleaded only as the offer-letter name and among the DOES, because the active TaskUs enterprise continued the hire through TaskUs USA and TaskUs Holdings.

31. On the documentary record presently available to Plaintiff:

- **Offer issued by:** TaskUs, LLC (offer letter; Form 2810.5);

- **Screening consent directed to:** TaskUs USA, LLC (United States Background Consent Form);

- **Report received by:** TaskUs Holdings, Inc. / TASKUS HOLDINGS INC USA (First Advantage September 15 consumer disclosure; Client Account 417722USA);

- **Hold communicated by:** TaskUs Talent Acquisition Operations (taops.us@taskus.com), copying Liz Ramirez (liz.ramirez02@taskus.com), on September 14;

- **Hold maintained / start never restored after September 15:** the TaskUs staffing enterprise that had placed the start on hold pending the background report -- including TaskUs Holdings as report recipient -- and, to the extent Uber controlled start authorization on its campaign, Uber as alleged in Section X.

32. The use of different TaskUs entities in the offer, authorization, report-recipient account, NDA, drug-test order, and related onboarding documents makes the precise allocation of procurement and post-report decision authority information primarily within Defendants' possession. Plaintiff therefore pleads alternative and overlapping responsibility among TaskUs Holdings, TaskUs USA, and presently unidentified TaskUs entities to the extent permitted by Rule 8(d). Plaintiff does not allege alter ego merely from common branding.

33. Defendant Uber Technologies, Inc. ("Uber") is a Delaware corporation that does business in this District, including autonomous-vehicle and delivery operations in Santa Clara County. The offered assignment was expressly identified as Uber AV Teammate, requisition R_2608_10812. "Uber AV" is a campaign title, not a separate legal entity named as a defendant.

34. Plaintiff does not allege that Uber became a statutory user of the report merely because its name appeared on the campaign. Uber's liability under Counts Three and Four is asserted because -- on information and belief grounded in the facts alleged in Sections IV through X -- Uber set, specified, or approved the First Advantage search criteria and screening package for Uber AV Teammate placements (including national sex-offender / PRINSOS / NSOR components), shared control over start authorization, and received the benefit of TaskUs's hold and non-restoration pending that report.

35. Plaintiff is ignorant of the true names and capacities of DOES 1 through 20 and will amend when ascertained. DOES include TaskUs, LLC; TaskUs, Inc.; any other TaskUs affiliate that procured, adjudicated, or used the report or issued the hold; any Uber operating affiliate that directed the AV Teammate placement or screening; and any person who received, accessed, or used the California-registry-sourced information for an employment purpose on this hire.

## IV. THE ACCEPTED UBER AV TEAMMATE ASSIGNMENT

36. On September 14, 2026, at approximately 6:50 a.m., WorkDay emailed Plaintiff from taskus@myworkday.com: "Congratulations! We are pleased to make you an offer for the **Uber AV Teammate (SJ: 09/23/2026)** position."

37. The same day, TaskUs, LLC issued a written Offer of Temporary Employment stating, among other things:

- hiring employer: TaskUs, LLC;
- position: Teammate;
- base pay: $22.00 per hour, non-exempt;
- location: **USA - San Jose - San Jose (Delivery)**;
- production hours: **2PM - 11PM**;
- anticipated assignment: September 23, 2026 through on or around December 4, 2026;

- retention bonus: $1,000 if still employed in good standing on December 4, 2026;

- employment at-will and contingent on job-related background screening and a Fair Chance Act process for conviction history;

- screening usually takes two weeks and **employment may begin while screening is pending**.

38. Plaintiff accepted the offer the same day. The Adobe Acrobat Sign signature request for that offer packet was sent by **John Malones** (john.malones@taskus.com) on September 14, 2026, at approximately 6:55 a.m. Plaintiff completed the Adobe Sign packet the same morning (completion notice Reply-To: John Malones / TaskUs Holdings Inc) at approximately 8:21 a.m. PDT and signed the United States Background Consent Form, the TaskUs Holdings, Inc. non-disclosure / invention-assignment agreement, and related onboarding documents.

39. DLSE Form 2810.5 identified TaskUs, LLC as the hiring employer. It did not list Uber as the entity for whom the work would be performed. That wage-notice fact does not negate Uber's end-client role on the Uber-branded campaign as alleged herein.

40. The only assignment offered was the Uber AV Teammate campaign. Without Uber's campaign, there was no Teammate placement for Plaintiff to accept.

41. At approximately 6:51 a.m. the same day, TA Ops US emailed Plaintiff "Action Required Today" onboarding tasks that separately listed Workday, Adobe Sign, I-9, the First Advantage background check, and the drug test -- treating the consumer-report screen and the saliva product as distinct items.

## V. PROCUREMENT OF ORDER WPS-361214148

42. On September 14, 2026, at approximately 6:50 a.m., First Advantage emailed Plaintiff from do_not_reply@fadv.com inviting him to start a Profile Advantage background check (invite key GK5HGWELSS).

43. The same day, Profile Advantage opened Order **WPS-361214148** (portal candidate name Brendan Ngwanforbi).

44. Order WPS-361214148 was a "consumer report" within the meaning of 15 U.S.C. § 1681a(d): a written communication by First Advantage, a consumer reporting agency, bearing on Plaintiff's character, general reputation, and mode of living -- including the national sex-offender registry component -- that was furnished and used for employment purposes.

45. The report was procured for employment purposes. TaskUs Holdings and TaskUs USA procured or caused the report to be procured and received or were entitled to receive its results. Their exact contractual allocation is information primarily within Defendants' knowledge and is pleaded in the alternative under Rule 8(d).

46. The written Offer of Temporary Employment stated that the Company would provide required standalone disclosures and obtain required authorizations before obtaining a consumer or investigative consumer report.

47. Plaintiff's preserved documents include a United States Background Consent Form titled "Acknowledgement Consent Form," dated September 14, 2026. That form states, in substance: "By signing below, I consent to the Company releasing any information obtained in this background screening to TaskUs USA LLC for purposes of assisting the Company and TaskUs USA LLC in making a determination as to my eligibility for employment … retention,

termination, or for other lawful employment purposes." It further states that nothing therein shall be construed as an offer of employment or a contract for services.

48. That form is a release/consent directed to TaskUs USA, LLC. It is not a document consisting solely of a disclosure that a consumer report may be obtained for employment purposes. It does not state that a consumer report may be obtained. It does not identify First Advantage as the consumer reporting agency or investigative consumer reporting agency. It does not describe the nature or scope of the investigation. It does not supply California-specific ICRAA rights information required by Civil Code § 1786.16.

49. Before procurement, Defendants did not provide Plaintiff a separate compliant document that consisted solely of the disclosure required by 15 U.S.C. § 1681b(b)(2)(A) and that informed him that a consumer report could be obtained for employment purposes -- notwithstanding the offer's promise that such standalone disclosures would be provided.

50. Before procurement, Defendants likewise did not provide Plaintiff a compliant ICRAA disclosure under Civil Code § 1786.16 identifying the investigative consumer reporting agency actually conducting the investigation (name, address, and telephone number), the nature and scope of the investigation, and the required California-specific consumer rights information.

50. As of approximately 10:20 a.m. PDT on September 14, 2026, the portal showed:

- Completed: MVR; Federal Felony And Misdemeanor; PRICPGS; FADV National Criminal File; Social Security Verification;

- In Progress: Felony Including Misdemeanor; **PRINSOS**.

51. The portal stated the report was not viewable until the order completed. A component marked Completed is not itself a result and is not a registry hit. As of the 10:20 a.m. snapshot -- about one hour before the hold email -- the sex-offender component had not finished.

## VI. THE SEPTEMBER 14 HOLD IS CONTEXT, NOT THE COMPLETED-REPORT ADVERSE ACTION

52. On September 14, 2026, at 11:24 a.m., TA Ops US (taops.us@taskus.com), copying **Liz Ramirez** (liz.ramirez02@taskus.com), emailed Plaintiff "Important Update Regarding Your Application with TaskUs."

53. The email stated that TaskUs had placed Plaintiff's start date on a "standard administrative hold while final onboarding reviews are completed, **including the processing of your background screening report**," that the scheduled start must be adjusted pending completion of that process, that Plaintiff should monitor First Advantage (Customer Support 800-888-5773), and that the application "remains in a pending status."

54. That email is in Plaintiff's possession and will be produced as appropriate. It is not a First Advantage pre-adverse notice. It did not enclose a copy of a consumer report. It did not enclose a written Summary of Rights.

55. At the time of that message, the portal reflected that PRINSOS remained In Progress. Plaintiff therefore does not plead that the September 14 hold was an adverse action based on the completed California-registry result.

56. The hold instead establishes that the background screening process was an identified condition affecting release of Plaintiff's accepted start and supplies context for evaluating what

happened after the completed report was furnished.

57. The hold contradicted the offer's statement that employment may begin while screening is pending.

## VII. FIRST ADVANTAGE FURNISHED CALIFORNIA-REGISTRY-SOURCED INFORMATION

58. On September 15, 2026, First Advantage issued a consumer disclosure letter to Plaintiff at his Stockton address. The letter advised that First Advantage was reporting public-record information concerning Plaintiff to:

TASKUS HOLDINGS INC USA

1650 INDEPENDENCE DR

STE 100

NEW BRAUNFELS, TX 78132-3832

59. That consumer disclosure, including the enclosed registry component, is in Plaintiff's possession and will be produced as appropriate.

60. The enclosed national sex offender registry component of Order WPS-361214148 states, among other things:

- Record Source: **NATIONAL SEX OFFENDER REGISTRY**;

- Type of Search: NATIONAL SEX OFFENDER REGISTRY SEARCH-DEPT OF JUSTICE;

- Date of Search: 09/14/2026;

- Name on File: NGWANFORBI, BRENDAN NGEHSI;

- Sentence: **SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY. SENTENCE: REGISTERED SEX OFFENDER**.

61. Plaintiff therefore possesses a document directly attributing the sex-offender component to the California Sex Offender Registry.

62. Procurement and furnishing do not, standing alone, establish actionable "use" under Penal Code § 290.46(j)(2)(E). Count Four is based on actual employment use after the report was received -- the post-report maintenance of the hold and the never-restored start -- not on First Advantage's transmission alone.

**VIII. THE COMPLETED ADVERSE ACTION — POST-REPORT NON-RESTORATION**

63. After First Advantage furnished Order WPS-361214148 to TASKUS HOLDINGS INC USA on September 15, 2026, Defendants had the consumer report that the September 14 hold had been waiting on.

64. From September 15 through the anticipated September 23 start, and thereafter, Defendants:

- maintained the administrative hold;

- did not restore the September 23 Uber AV Teammate start;

- did not issue a new start date;

- did not provide Plaintiff a copy of Order WPS-361214148 and a written Summary of Rights *before* maintaining that hold and withholding the assignment;

- did not advise Plaintiff under Civil Code § 1786.40, at the time of the employment denial or withholding, that an investigative consumer report had been obtained and supply First Advantage's name and address as the required contemporaneous advice; and

- did not issue a Fair Chance notice or individualized assessment stating that California-registry information was disregarded.

65. The completed adverse employment action alleged in this Complaint is therefore the post-furnishing withholding and effective rescission of the accepted assignment. The September 14 hold is the employer's own writing that the background report controlled the start. The September 15 disclosure is the report that then arrived, expressly sourced to the California Sex Offender Registry. The September 23 start passed without restoration.

66. Freezing an accepted start date, placing the application in pending status, maintaining that freeze after the report arrived, and withholding the Uber AV Teammate assignment are adverse employment actions -- employment decisions adversely affecting a prospective employee within the meaning of 15 U.S.C. § 1681a(k)(1)(B)(ii) -- and purposes relating to employment within the meaning of Penal Code § 290.46(j).

67. Defendants never told Plaintiff that the hold had been lifted for a reason independent of Order WPS-361214148.

## IX. THE SALIVA PRODUCT IS SEPARATE AND LATER

68. On September 14, 2026, at approximately 8:49 a.m., First Advantage separately ordered a Saliva Drug Test Full Service NonDOT for employer TaskUs Holdings, Inc. (Schedule ID **96558696**; LabCorp-Milpitas).

69. The offer packet includes a California medical-release for that drug/alcohol product "as facilitated by First Advantage and/or its network of authorized laboratories." That authorization is not a consumer-report disclosure and is not Order WPS-361214148.

70. On September 16, 2026, at approximately 9:57 a.m., First Advantage sent a Reminder for Schedule ID 96558696 (cc taops-bgvglobal@taskus.com). At approximately 3:05 p.m. the same day, First Advantage sent an "Action Required" email stating that Plaintiff's saliva schedule confirmation could not be successfully completed. The schedule expired September 17, 2026, 11:49 a.m. Eastern, without collection.

71. Plaintiff does not collapse the saliva product into the consumer report.

72. The September 14 hold:

- issued on September 14 at 11:24 a.m., before any saliva confirmation failure;
- expressly named the **background screening report**;
- did not name the saliva test; and

- remained operative after First Advantage furnished the California-registry-sourced report on September 15 -- still one day before the saliva-confirmation failure.

73. A later saliva-confirmation issue cannot, at the pleading stage, erase the employer's own September 14 writing or the September 15 California-registry-sourced report. Plaintiff alleges that the California-registry-sourced information in Order WPS-361214148 was a substantial factor in Defendants' post-report freezing and withholding of the accepted Uber AV Teammate assignment.

## X. UBER AS END CLIENT / JOINT EMPLOYER

74. Every candidate-facing WorkDay communication that announced the offer identified the position as **Uber AV Teammate**, not a generic TaskUs role.

75. The requisition identifier is R_2608_10812 / C261051599 -- Uber AV Teammate (SJ: 09/23/2026).

76. The anticipated work was San Jose delivery on Uber's AV campaign. The offer packet supplied orientation at 1631 N 1st Street, Suite 200, San Jose, a production depot at 3030 Corvin Drive, Santa Clara, and closed-course training in Sonoma -- locations of the work to be performed for Uber's campaign, not generic TaskUs office work.

77. TaskUs Holdings and TaskUs USA functioned as the staffing / payroll / offer-letter / consent / report-recipient enterprise. Uber functioned as the end client whose branded campaign created the temporary need for Teammates and whose Northern District operations would receive Plaintiff's labor.

78. On information and belief, grounded in the offer packet, the WorkDay campaign title and requisition, the September 14 hold, and the September 15 consumer disclosure:

- Uber directed or approved the Uber AV Teammate requisition, headcount, San Jose location, and September 23, 2026 start cohort;

- Uber set, specified, or approved the First Advantage search criteria and screening package TaskUs ordered for Uber AV Teammate placements -- including the national sex-offender / PRINSOS / NSOR search components that returned the California Sex Offender Registry SOURCE OF RECORD line on Order WPS-361214148;

- TaskUs ran that package as the staffing vendor for Uber's campaign;

- Uber received, was entitled to receive, or caused TaskUs to obtain and use First Advantage screening results -- including the California-registry-sourced component -- before authorizing Plaintiff's start on Uber's campaign;

- TaskUs's September 14 hold pending the background report, and the post-September 15 non-restoration, were taken in the course of staffing Uber's campaign and for Uber's benefit; and

- Uber and the TaskUs defendants are joint employers and/or agents of one another with respect to the hiring decision on this placement.

79. Uber's campaign created the only job offered. The First Advantage package run for that campaign returned California-registry SOURCE OF RECORD information. TaskUs froze the start pending that report and never restored it after the report arrived.

80. Penal Code § 290.46(j)(2)(E) prohibits use of § 290.46-disclosed information "for purposes relating to employment." Using that information to freeze or deny placement onto Uber's AV Teammate campaign is such a purpose, whether the offer letter is on TaskUs letterhead or Uber's.

81. The Form 2810.5's naming of TaskUs, LLC is a wage-notice fact. It does not preclude Uber's liability under Penal Code § 290.46(j) or the FCRA as end client and joint employer on the Uber AV Teammate campaign.

## XI. NO STATUTORY AUTHORIZATION; NO PRE-ADVERSE PACKET BEFORE THE COMPLETED ADVERSE ACTION

82. The use alleged was not "to protect a person at risk" within the meaning of Penal Code § 290.46(j)(1). Plaintiff is unaware of any other provision of law authorizing Defendants to use information disclosed pursuant to Penal Code § 290.46 for this Teammate / Uber AV delivery assignment.

83. Before taking and completing adverse action based in whole or in part on Order WPS-361214148 -- specifically, before maintaining the hold and withholding the assignment after that report was furnished -- Defendants did not provide Plaintiff a copy of the First Advantage consumer report and a written Summary of Rights as required by 15 U.S.C. § 1681b(b)(3)(A).

84. Defendants did not, at the time of the employment denial or withholding, advise Plaintiff under Civil Code § 1786.40 that an investigative consumer report had been obtained and supply First Advantage's name and address.

85. The offer referenced a Fair Chance Act process for conviction history. Defendants

did not provide Plaintiff a Fair Chance notice restoring the start or an individualized assessment stating that California-registry information was disregarded.

## XII. DAMAGES

86. Plaintiff lost an accepted temporary assignment at $22.00 per hour, production hours 2PM-11PM, from September 23, 2026 through on or around December 4, 2026, and lost the opportunity to earn the $1,000 retention bonus if still employed in good standing on December 4. Using the offer's stated production hours as a floor, Plaintiff's wage loss is at least $22.00 × approximately nine scheduled hours per production day for each day of the assignment window he was not permitted to work, plus the $1,000 retention-bonus opportunity, according to proof at trial. The complaint does not invent an unguaranteed 40-hour week beyond the offer terms.

87. As a result of Defendants' conduct, Plaintiff also suffered humiliation, anxiety, and emotional distress from having an accepted start frozen and then effectively rescinded after a California-registry-sourced background report was furnished without the required pre-adverse process -- including the period from the September 14 hold through the September 23 start that never occurred. Those injuries support actual damages under the FCRA and ICRAA according to proof.

88. Plaintiff also seeks nonduplicative statutory remedies authorized by the surviving claims, including FCRA relief under 15 U.S.C. §§ 1681n and 1681o (actual damages; statutory damages of not less than $100 and not more than $1,000 per consumer for willful noncompliance according to proof); ICRAA relief under Civil Code § 1786.50 (actual damages or the statutory amount where available; fees; punitive damages upon the required showing); and Penal Code § 290.46(j)(4)(A) relief (actual damages; up to three times actual damages and not less than $250; fees; exemplary damages), together with costs and interest as authorized.

## XIII. COUNT ONE

### Fair Credit Reporting Act — 15 U.S.C. § 1681b(b)(2)(A)

### Against TaskUs Holdings, TaskUs USA, and the Procuring DOE Defendants

89. Plaintiff realleges paragraphs 1 through 88.

90. Plaintiff was a consumer. Order WPS-361214148 was a consumer report under 15 U.S.C. § 1681a(d) as alleged in paragraph 43. The TaskUs defendants procured or caused that consumer report to be procured for employment purposes.

91. Section 1681b(b)(2)(A) requires a clear and conspicuous written disclosure, made before procurement, in a document consisting solely of the disclosure, that a consumer report may be obtained for employment purposes, together with written authorization.

92. Before procurement, Defendants did not provide Plaintiff a compliant standalone disclosure satisfying § 1681b(b)(2)(A). The preserved United States Background Consent Form is a consent/release to TaskUs USA, LLC, quoted in substance in paragraph 47. It is not a document consisting solely of the required disclosure; it does not disclose that a consumer report may be obtained for employment purposes; and the offer's own promise that required standalone disclosures would be provided was not kept.

93. Defendants nevertheless caused First Advantage to procure and furnish Order WPS-361214148.

94. The violation was at least negligent under 15 U.S.C. § 1681o. On proof concerning Defendants' standardized screening architecture and compliance procedures, it was willful

under 15 U.S.C. § 1681n.

95. Plaintiff seeks relief authorized by 15 U.S.C. §§ 1681n and 1681o, without duplicative recovery.

## XIV. COUNT TWO

**California Investigative Consumer Reporting Agencies Act — Pre-Procurement Disclosure**

**Civil Code §§ 1786.16, 1786.50**

**Against TaskUs Holdings, TaskUs USA, and the Procuring DOE Defendants**

96. Plaintiff realleges paragraphs 1 through 88.

97. The First Advantage Profile Advantage employment background report (Order WPS-361214148) was an investigative consumer report under ICRAA: a consumer report bearing on Plaintiff's character, general reputation, personal characteristics, and mode of living -- including registry status -- obtained through database and public-record compilation for employment. Civil Code § 1786.2(c) defines "investigative consumer report" to reach such information "obtained through any means."

98. Civil Code § 1786.16 requires clear and conspicuous pre-procurement disclosure of specified information, including identification of the investigative consumer reporting agency that will conduct the investigation and California-specific information concerning the nature and scope of the investigation and consumer rights. The preserved consent form and onboarding packet did not supply First Advantage's name, address, and telephone number as the investigative consumer reporting agency; did not describe the nature and scope of the

investigation to be conducted; and did not provide the required California-specific rights information before Order WPS-361214148 was procured.

99. The preserved TaskUs onboarding documents therefore did not provide Plaintiff the disclosure required by § 1786.16 before First Advantage procured Order WPS-361214148.

100. Defendants nevertheless procured or caused the investigative consumer report to be prepared and furnished.

101. Plaintiff seeks the remedies authorized by Civil Code § 1786.50 according to proof, including actual damages or the statutory amount where available, costs and attorney's fees where recoverable, and punitive damages upon proof of grossly negligent or willful noncompliance.

## XV. COUNT THREE

### Fair Credit Reporting Act — 15 U.S.C. § 1681b(b)(3)(A)

**Against TaskUs Holdings, TaskUs USA, Uber, and the Verified Post-Report User DOE Defendants**

102. Plaintiff realleges paragraphs 1 through 88.

103. Order WPS-361214148 was a consumer report used for employment purposes.

104. After First Advantage furnished Order WPS-361214148 to TASKUS HOLDINGS INC USA on September 15, 2026, TaskUs Holdings -- as the identified report recipient -- and the TaskUs enterprise that had issued the September 14 hold through TA Ops US (cc Liz Ramirez) used that report for employment purposes by maintaining the hold, refusing to restore

the September 23 start, and withholding or rescinding the accepted Uber AV Teammate assignment. The September 23 start date passed without restoration. Uber's role is alleged in Section X and paragraph 108.

105. Those post-furnishing acts were adverse actions based in whole or in part on the consumer report -- employment decisions adversely affecting a prospective employee within the meaning of 15 U.S.C. § 1681a(k)(1)(B)(ii). The persons taking and maintaining that action had the completed report that the September 14 hold had been waiting on, including the California-registry SOURCE OF RECORD component.

106. Before taking those post-furnishing adverse actions, Defendants did not provide Plaintiff a copy of that report and the written Summary of Rights required by § 1681b(b)(3)(A).

107. The September 14 hold is not pleaded as the completed-report adverse action; it is context showing that report processing affected release of the start, and part of a continuous adverse-action sequence that matured when the report arrived and the start was never restored.

108. Uber's liability on this Count rests on the joint-employer / package-spec and start-authorization facts alleged in Section X, not on campaign branding alone.

109. The count is timely. The completed adverse action occurred on and after September 15, 2026, and crystallized when the September 23 start passed without restoration.

110. Noncompliance was at least negligent under 15 U.S.C. § 1681o. On proof, it was willful under 15 U.S.C. § 1681n: Defendants are sophisticated users of employment consumer reports; TaskUs operates high-volume background screening as a standard part of its staffing business; the offer packet invoked Fair Chance Act process; First Advantage's own September 15 package identified the document as a consumer disclosure of public-record information

being reported to TASKUS HOLDINGS INC USA; and Defendants nonetheless completed the withholding without the required pre-adverse copy and Summary of Rights.

111. Plaintiff seeks relief authorized by 15 U.S.C. §§ 1681n and 1681o according to proof.

## XVI. COUNT FOUR

### Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

### Penal Code § 290.46(j)(2)(E), (j)(4)(A)

### Against TaskUs Holdings, TaskUs USA, Uber, and the Verified Actual-Use DOE Defendants

112. Plaintiff realleges paragraphs 1 through 88.

113. Plaintiff is a person as to whom information is disclosed through California's Megan's Law internet website.

114. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment, except as authorized under § 290.46(j)(1) or any other provision of law.

115. First Advantage furnished to TaskUs Holdings Inc USA, on Order WPS-361214148, information concerning Plaintiff whose sex-offender component expressly states SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.

116. That information is information disclosed pursuant to Penal Code § 290.46.

Plaintiff is a person as to whom information is disclosed through California's Megan's Law internet website. The Sentence field does not describe a generic DOJ abstract or ordinary court docket; it expressly attributes the component to the CALIFORNIA SEX OFFENDER REGISTRY -- the Megan's Law registry operated under § 290.46. Plaintiff does not ask the Court to infer the source.

117. Plaintiff does not base this Count on ordinary court-record conviction information and does not allege that mere republication by First Advantage, standing alone, is the prohibited employment use.

118. After TaskUs Holdings received the report on September 15, 2026, TaskUs Holdings and the TaskUs enterprise that maintained the hold -- and Uber to the extent alleged in Section X -- actually used that California-registry-sourced information for purposes relating to employment by maintaining the administrative hold, refusing to restore the September 23 Uber AV Teammate start, and withholding or rescinding Plaintiff's accepted assignment after the report -- with its California-registry SOURCE OF RECORD line -- was in TaskUs Holdings' hands.

119. The California-registry-sourced information was a substantial factor in those employment actions. The September 14 hold named the background screening report as a basis for freezing the start. The report that then arrived contained the California-registry SOURCE OF RECORD line. The start was never restored.

120. Uber used, caused the use of, or is jointly liable for the use of that information for purposes relating to employment on its Uber AV Teammate campaign, as end client and joint employer -- including by setting or approving the search criteria that caused the California-registry-sourced component to be ordered and by receiving the benefit of TaskUs's hold and non-restoration pending that report.

121. The use was not to protect a person at risk under § 290.46(j)(1), and Plaintiff is unaware of any other law authorizing use of § 290.46-disclosed information for this assignment.

122. The use occurred on and after September 15, 2026. This action is timely.

123. Defendants thereby violated Penal Code § 290.46(j)(2)(E).

124. Plaintiff seeks the remedies authorized by § 290.46(j)(4)(A): actual damages, and any amount determined by the jury or the Court not exceeding three times the actual damages and not less than $250, plus attorney's fees, exemplary damages, and costs as authorized -- without duplicative recovery.

125. Plaintiff does not presently seek preventive relief under § 290.46(j)(4)(B).

126. This Count is limited to use of information disclosed pursuant to § 290.46, as shown by the SOURCE OF RECORD field on Order WPS-361214148.

## XVII. COUNT FIVE

## ICRAA Adverse-Employment Notice

## Civil Code §§ 1786.40, 1786.50

## Against TaskUs Holdings, TaskUs USA, and the Verified Denial Actor DOE Defendants

127. Plaintiff realleges paragraphs 1 through 88.

128. Order WPS-361214148 was an investigative consumer report under Civil Code § 1786.2(c) as alleged in paragraph 97.

129. On and after September 15, 2026, and culminating when the September 23, 2026 start passed without restoration, TaskUs Holdings and TaskUs USA (and related TaskUs actors as alleged) denied, withheld, or refused to proceed with Plaintiff's accepted employment under circumstances in which they had obtained the First Advantage investigative consumer report.

130. At the time of that employment denial or withholding -- including when the September 23 start was not restored -- Defendants did not provide the contemporaneous § 1786.40 advice supplying First Advantage's name and address.

131. The § 1786.40 omission alleged here is separate from the FCRA pre-adverse omission alleged in Count Three. First Advantage's September 15 consumer disclosure to Plaintiff is not Defendants' contemporaneous § 1786.40 advice at the time they withheld the assignment.

132. Plaintiff seeks the remedies authorized by Civil Code § 1786.50 according to proof.

## XVIII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests:

A. Actual and compensatory damages according to proof, including at least the value of the accepted $22.00-per-hour assignment (production hours 2PM-11PM) for the September 23 through on or around December 4, 2026 window, the $1,000 retention-bonus opportunity, and

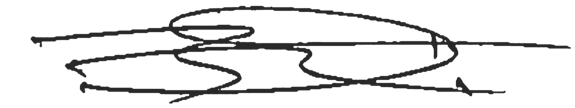
emotional-distress damages authorized by the FCRA and ICRAA, without inventing an unguaranteed hour count beyond the offer; B. Relief authorized by 15 U.S.C. §§ 1681n and 1681o; C. Relief authorized by Civil Code § 1786.50; D. Relief authorized by Penal Code § 290.46(j)(4)(A); E. Punitive or exemplary damages where authorized and supported by proof; F. Taxable costs and attorney's fees where authorized by statute or rule; G. Prejudgment and postjudgment interest as allowed by law; and H. Such other nonduplicative relief as the Court deems proper.

## XIX. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 24, 2026

Respectfully submitted,



**BRENDAN NGWA NFORBI**

Plaintiff, In Propria Persona